



BHSME, LLC

CONTRACT #007: Owner's Advisor for Kings View Good Samaritan BHCIP Project

CONTRACT FOR STRATEGIC CONSULTING SERVICES

This Agreement ("Agreement") is made effective as of May 12, 2025 ("Effective Date"), by and between **BHSME, LLC**, a California limited liability company with its principal office located at 302 Washington Street, #211, San Diego, CA 92103 ("Consultant"), and **Good Samaritan Hospital**, c/o Minty Dillon ("Client").

1. PURPOSE OF THIS CONTRACT

Consultant shall provide Owner's Advisor consulting services to support the planning, permitting, and development of a new 24-bed behavioral health facility located at 450 Kings County Dr, Hanford, CA 93230, funded under BHCIP Bond Round 1. This scope is designed to assist Client in successful execution of the ~\$15M DHCS-funded development.

2. TERM

This Agreement shall commence upon execution and shall remain in effect for a period of twelve (12) months, unless earlier terminated in accordance with Section 8. Either party may terminate with fourteen (14) days' written notice.

3. SCOPE OF WORK

A. Key Services:

- Due diligence, site analysis, and strategic development planning
- Development Team RFP oversight and partner selection
- DHCS PFA compliance guidance and drawdown planning
- Budget, schedule, and scope alignment
- Risk management and grant reporting support
- A&E and construction stakeholder strategic coordination
- Permitting roadmap and regulatory navigation

B. Strategic Focus Areas:

1. Funding Agreement (PFA) Compliance & Strategy (Months 1–3)
2. PFA Performance & Execution (Months 1–3)
3. Strategic Real Estate Planning (Months 1–9)
4. Team Coordination (Months 1–9)
5. Project Oversight & Risk Management (Months 1–12)
6. Regulatory Navigation (Months 1–12)
7. Grant Integrity & Compliance Protection (Months 1–12)

C. Phased Milestone Schedule:

- **Part I:** Months 1–3 – Kickoff, PFA compliance, permitting strategy

- **Part II:** Months 4–9 – Partner selection, A&E procurement, permitting coordination
- **Part III:** Months 10–12 – Draw readiness, construction prep, pre-submission review

4. FEES & PAYMENT TERMS

A. Base and Tiered Monthly Fees (Billed in Advance):

- Tier 1: \$8,000/month for up to 16 hours
- Tier 2: \$10,000/month for up to 20 hours (standard use)
- Tier 3: \$15,000/month for up to 30 hours (with prior written approval)

B. Overage Hourly Rate:

- \$500/hour, not to exceed 10 hours/month, with prior written consent

C. Invoicing & Late Fees:

- Invoices issued monthly, due within 15 days
- 1.5% monthly late fee applied after 15 days

5. MEETING PARTICIPATION

Consultant shall participate in up to two (2) virtual meetings weekly. Additional meetings or in-person sessions require prior agreement and are subject to travel reimbursement.

6. TRAVEL & EXPENSES

Client agrees to reimburse Consultant for approved travel expenses including:

- Per diem: \$300/day
- Lodging: up to \$350/night
- Meals: up to \$50/day
- Transportation and airfare as required

7. CONFIDENTIALITY

Consultant shall keep confidential all proprietary information disclosed during the term of this Agreement. This clause survives termination.

8. TERMINATION

Either party may terminate this Agreement with fourteen (14) days' written notice. Consultant shall be paid for all work completed through the effective termination date.

9. INDEPENDENT CONTRACTOR

Consultant acts solely as an independent contractor. Nothing in this Agreement creates an employer-employee or joint venture relationship.

10. INDEMNIFICATION

A. Indemnification by Client:

Client agrees to indemnify, defend, and hold harmless Consultant, its officers, directors, employees, and agents from and against any and all claims, damages, losses, liabilities, costs, and expenses (including reasonable attorneys' fees) arising out of or related to:

- (i) Client's breach of this Agreement;
- (ii) acts or omissions of Client or its representatives; or
- (iii) any third-party claims related to Client's use of Consultant's services or deliverables, except to the extent arising from Consultant's gross negligence or willful misconduct.

B. Consultant Liability Limitation:

To the fullest extent permitted by law, Consultant's total liability to Client, for any cause whatsoever and regardless of the form of action, whether in contract, tort (including negligence), or otherwise, shall be strictly limited to the total amount of fees actually paid by Client to Consultant under this Agreement.

C. Exclusion of Damages:

In no event shall Consultant be liable for any indirect, incidental, consequential, special, punitive, or exemplary damages, including but not limited to lost profits, business interruption, or reputational harm, even if advised of the possibility of such damages.

D. No Third-Party Liability:

Consultant shall have no liability or obligation to any third parties who may benefit from or rely on the services or deliverables under this Agreement, unless such third-party relationship is expressly agreed to in writing by consultant.

11. LIMITATION OF LIABILITY

Consultant's liability is limited to the total fees paid under this Agreement. Consultant shall not be liable for indirect, incidental, or consequential damages.

12. INSURANCE

Consultant maintains professional liability insurance of \$1M per claim and \$2M aggregate. Proof of insurance is available upon request.

13. GOVERNING LAW & DISPUTES

This Agreement is governed by California law. Any disputes shall first attempt resolution via mediation in Kings County, CA. If unresolved, arbitration will be conducted under AAA rules.

14. ENTIRE AGREEMENT

This Agreement reflects the entire understanding between parties. Modifications must be in writing and signed by both parties.

15. EXECUTION

This Agreement may be executed in one or more counterparts, each of which shall be deemed an original, and all of which together shall constitute one and the same instrument. Electronic signatures and scanned copies of executed signature pages shall be valid and binding as originals. By signing below, the parties acknowledge that they have read, understood, and agreed to the terms and conditions of this Agreement.

_____@_____

BHSME, LLC

By: Brian Jones

Name: Brian Jones

Title: CEO

Date: MAY 12, 2025

GOOD SAMARITAN HOSPITAL

By: _____

Name: Minty Dillon

Title: _____

Date: _____